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►B REGULATION (EC) No 1333/2008 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL

of 16 December 2008

on food additives

(Text with EEA relevance)

(OJ L 354, 31.12.2008, p. 16)

Amended by:

		Official Journal		
		No	page	date
►M1	Commission Regulation (EU) No 238/2010 of 22 March 2010	L 75	17	23.3.2010
►M2	Commission Regulation (EU) No 1129/2011 of 11 November 2011	L 295	1	12.11.2011
►M3	amended by Commission Regulation (EU) No 1152/2013 of 19 November 2013	L 311	1	20.11.2013
►M4	Commission Regulation (EU) No 1130/2011 of 11 November 2011	L 295	178	12.11.2011
►M5	Commission Regulation (EU) No 1131/2011 of 11 November 2011	L 295	205	12.11.2011
►M6	Commission Regulation (EU) No 232/2012 of 16 March 2012	L 78	1	17.3.2012
►M7	Commission Regulation (EU) No 380/2012 of 3 May 2012	L 119	14	4.5.2012
►M8	Commission Regulation (EU) No 470/2012 of 4 June 2012	L 144	16	5.6.2012
►M9	Commission Regulation (EU) No 471/2012 of 4 June 2012	L 144	19	5.6.2012
►M10	Commission Regulation (EU) No 472/2012 of 4 June 2012	L 144	22	5.6.2012
►M11	Commission Regulation (EU) No 570/2012 of 28 June 2012	L 169	43	29.6.2012
►M12	Commission Regulation (EU) No 583/2012 of 2 July 2012	L 173	8	3.7.2012
►M13	Commission Regulation (EU) No 675/2012 of 23 July 2012	L 196	52	24.7.2012
►M14	Commission Regulation (EU) No 1049/2012 of 8 November 2012	L 310	41	9.11.2012
►M15	Commission Regulation (EU) No 1057/2012 of 12 November 2012	L 313	11	13.11.2012
►M16	Commission Regulation (EU) No 1147/2012 of 4 December 2012	L 333	34	5.12.2012
►M17	Commission Regulation (EU) No 1148/2012 of 4 December 2012	L 333	37	5.12.2012
►M18	Commission Regulation (EU) No 1149/2012 of 4 December 2012	L 333	40	5.12.2012
►M19	Commission Regulation (EU) No 1166/2012 of 7 December 2012	L 336	75	8.12.2012
►M20	Commission Regulation (EU) No 25/2013 of 16 January 2013	L 13	1	17.1.2013

▼M2

ANNEX II

Union list of food additives approved for use in foods and conditions of use

PART A

1. **Introduction**

This Union list includes:

▼M53

— the name of the food additive and its E-number; as an alternative more specific E-numbers and names listed in Commission Regulation (EU) No 231/2012 ([1]) may be used, excluding synonyms, if the named food additives have indeed been added to a certain food,

▼M2

— the foods to which the food additive may be added,

— the conditions under which the food additive may be used,

— restrictions on the sale of the food additive directly to the final consumer.

2. **General provisions on listed food additives and conditions of use**

▼M53

1. Only the substances listed in Part B, as specified by Regulation (EU) No 231/2012, may be used as additives in foods, unless more specifically provided for in Part E.

▼M2

2. Additives may only be used in the foods and under the conditions set out in Part E of this Annex.

3. In Part E of this Annex, foods are listed on the basis of food categories set out in Part D of this Annex and additives are grouped on the basis of definitions set out in Part C of this Annex.

▼M7

4. Aluminium lakes prepared from all colours listed in Table 1 of Part B are authorised until 31 July 2014.

From 1 August 2014 only aluminium lakes prepared from the colours listed in Table 3 of this Part A are authorised and only in those food categories where provisions on maximum limits on aluminium coming from lakes are explicitly stated in Part E.

▼M98

5. The colours E 123, E 127, E 160b(i), E 160b(ii), E 161g, E 171, E 173 and E 180 and mixtures thereof may not be sold directly to the consumer.

▼M2

6. The substances listed under numbers E 407, E 407a and E 440 may be standardised with sugars, on condition that this is stated in addition to the number and designation.

7. When labelled ‘for food use’, nitrite may be sold only in a mixture with salt or a salt substitute.

8. The carry over principle set out in Article 18(1)(a) of Regulation (EC) No 1333/2008, shall not apply to foods listed in Table 1, as regards food additives in general, and in Table 2, as regards food colours.

([1]) Commission Regulation (EU) No 231/2012 of 9 March 2012 laying down specifications for food additives listed in Annexes II and III to Regulation (EC) No 1333/2008 of the European Parliament and of the Council (OJ L 83, 22.3.2012, p. 1).

▼M2

E-number	Name
E 211	Sodium benzoate
E 212	Potassium benzoate
E 213	Calcium benzoate

(d) E 200–219: Sorbic acid — sorbates; Benzoic acid — benzoates; p-hydroxybenzoates (SA + BA + PHB)

E-number	Name
E 200	Sorbic acid
E 202	Potassium sorbate

▼M76

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▼M2

E 210	Benzoic acid
E 211	Sodium benzoate
E 212	Potassium benzoate
E 213	Calcium benzoate
E 214	Ethyl-p-hydroxybenzoate
E 215	Sodium ethyl p-hydroxybenzoate
E 218	Methyl p-hydroxybenzoate
E 219	Sodium methyl p-hydroxybenzoate

▼M76

(e) E 200 – 202; 214 – 219: Sorbic acid – potassium sorbate; p-hydroxybenzoates (SA + PHB)

E-number	Name
E 200	Sorbic acid
E 202	Potassium sorbate
E 214	Ethyl-p-hydroxybenzoate
E 215	Sodium ethyl p-hydroxybenzoate
E 218	Methyl p-hydroxybenzoate
E 219	Sodium methyl p-hydroxybenzoate

▼M2

(f) E 214–219: p-hydroxybenzoates (PHB)

E-number	Name
E 214	Ethyl-p-hydroxybenzoate
E 215	Sodium ethyl p-hydroxybenzoate
E 218	Methyl p-hydroxybenzoate
E 219	Sodium methyl p-hydroxybenzoate

▼M2

Category number	E-number	Name	Maximum level (mg/l or mg/kg as appropriate)	Footnotes	Restrictions/exceptions
		(52): Maximum usable levels are expressed in free imide			
▼M5		(60): Expressed as steviol equivalents			
▼M2					
05.2	**Other confectionery including breath freshening microsweets**				
	Group I	Additives			The substances listed under numbers E 400, E 401, E 402, E 403, E 404, E 406, E 407, 407a, E 410, E 412, E 413, E 414, E 415, E 417, E 418, E 425 and E 440 may not be used in jelly mini-cups, defined, for the purpose of this Regulation, as jelly confectionery of a firm consistence, contained in semi rigid mini-cups or mini-capsules, intended to be ingested in a single bite by exerting pressure on the mini-cups or mini-capsule to project the confectionery into the mouth; E 410, E 412, E 415 E 417 may not be used to produce dehydrated foods intended to rehydrate on ingestion. E425 may not be used in jelly confectionery
▼M7	Group II	Colours at *quantum satis*	*quantum satis*		Period of application: until 31 July 2014
	Group II	Colours at *quantum satis*	*quantum satis*	(72)	Period of application: from 1 August 2014
	Group III	Colours with combined maximum limit	300	(25)	except candied fruit and vegetables Period of application: until 31 July 2014
	Group III	Colours with combined maximum limit	300	(25) (72)	except candied fruit and vegetables Period of application: from 1 August 2014

▼M2

Category number	E-number	Name	Maximum level (mg/l or mg/kg as appropriate)	Footnotes	Restrictions/exceptions
▼M7	E 173	Aluminium	*quantum satis*		only external coating of sugar confectionery for the decoration of cakes and pastries Period of application: until 1 February 2014
▼M2	E 174	Silver	*quantum satis*		only external coating of confectionery
	E 175	Gold	*quantum satis*		only external coating of confectionery
▼M76	E 200-219	Sorbic acid – potassium sorbate; Benzoic acid – benzoates; p-hydroxybenzoates	1 500	(1) (2) (5)	except candied, crystallized or glacé fruit and vegetables
	E 200-213	Sorbic acid – potassium sorbate; Benzoic acid – benzoates	1 000	(1) (2)	only candied, crystallized or glacé fruit and vegetables
▼M2	E 220-228	Sulphur dioxide — sulphites	100	(3)	only candied, crystallised or glacé fruit, vegetables, angelica and citrus peel
	E 220-228	Sulphur dioxide — sulphites	50	(3)	only glucose syrup-based confectionery (carry over from the glucose syrup only)
	E 297	Fumaric acid	1 000		only sugar confectionery
▼M115	E 334–337 and E 354	Tartaric acid – tartrates	25 000	(1) (2)	
▼M2	E 338-452	Phosphoric acid — phosphates — di-, tri- and polyphosphates	5 000	(1) (4)	only sugar confectionery, except candied fruit

▼M2

Category number	E-number	Name	Maximum level (mg/l or mg/kg as appropriate)	Footnotes	Restrictions/exceptions
	E 955	Sucralose	1 000		only strongly flavoured freshening throat pastilles with no added sugar
▼M105	E 960a – 960d	Steviol glycosides	670	(1) (60)	only strongly flavoured freshening throat pastilles, energy-reduced or with no added sugars
▼M2	E 961	Neotame	65		only strongly flavoured freshening throat pastilles with no added sugar
▼M39	E 969	Advantame	20		only strongly flavoured freshening throat pastilles with no added sugar
▼M2	E 1204	Pullulan	*quantum satis*		only breath freshening microsweets in the form of films
		(1): The additives may be added individually or in combination			
		(2): The maximum level is applicable to the sum and the levels are expressed as the free acid			
		(3): Maximum levels are expressed as SO_2 relate to the total quantity, available from all sources, an SO_2 content of not more than 10 mg/kg or 10 mg/l is not considered to be present			
		(4): The maximum level is expressed as P_2O_5			
		(5): E 214-219: p-hydroxybenzoates (PHB), maximum 300 mg/kg			
		(11): Limits are expressed as (a) acesulfame K equivalent or (b) aspartame equivalent			
		(49): The maximum usable levels are derived from the maximum usable levels for its constituent parts, aspartame (E 951) and acesulfame-K (E 950)			